had this produced a lot of inferior judges, it had placed a number of partisans on the bench who believed that putting on the black robes of a judge gave them a license to rewrite the laws. I wanted judges who would interpret the Constitution, not rewrite it. So I sent out an order setting up a new system to take politics out of the selection of judges: Whenever there was an opening for a judge around the state, we asked lawyers in the community, through their local Bar Association, to appoint a committee to consider eligible candidates and recommend the best available man or woman for the judgeship; at the same time, we asked a citizens' group in the same community to give us their recommendations on the best candidate; third, we asked all the judges sitting in the district to give us their recommendations. Each of the three groups acted independently, unaware of the others' recommendations. Then, all the recommendations were sent to me and assembled in the form of a scoresheet with a point system ranking the top candidate; without exception, I chose the person at the top of the rating. Politics or party membership played no part in the selection.

The system reminded me a little of how All-American football teams are chosen. Although none of the groups knew the others' recommendations, many times the three groups recommended the same candidate. As a result, we got the cream of the crop.

One day in 1968, Cap Weinberger, the state finance director, came to my office to tell me he had been going over the books and that he expected the state to have a budget surplus of more than $100 million the following fiscal year. The surplus was a result of the tax increase I'd signed to close the Brown administration deficit and some of our initial cost-cutting efforts.

Cap said no legislators knew about the projected surplus yet and he asked me if I had any ideas on how I wanted to